

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JEFFERSON OLFER VERTIZ CONTRERAS,

Petitioner

VS.

EDGAR FERNANDO CRUZ NOYOLA,

Respondent

) Case Number: FDI-24-800009

) Hearing Date: September 17, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OTHER: WRIT FOR POSSESSION OF PERSONAL PROPERTY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jefferson Olfer Vertiz Contreras and Respondent Edgar Fernando Cruz Noyola married on 1/10/2019. Petitioner contends the parties separated on 7/27/2021, for a marriage of 2 years and 6 months. Respondent has not made an appearance in this matter to date, and his default was entered on 4/17/2025. The parties have no minor children in common.
- 2) On 11/3/2025, a True Default Judgment was entered which requires Respondent to pay Petitioner \$19,300 “for repayment of personal loan for down payment of 2019 Chevrolet Equinox (vehicle) and its monthly payments from November 2019 – July 2021.”
- 3) Now on for hearing is Petitioner’s Request for Order filed 7/17/2026 wherein Petitioner asks the Court to issue a Writ of Execution for payment of \$19,300.
- 4) There is no Proof of Service on file for Petitioner’s 7/17/2026 Request for Order and Respondent did not file a Responsive Declaration.

1 **B. Findings and Order**

2 1) The hearing on Petitioner's 7/17/2026 Request for Order is hereby continued to **Tuesday,**
3 **12/1/2026 at 9:00 AM in Dept. 404.**

4 2) By the deadlines set forth in the Code of Civil Procedure, Petitioner shall have a third-party age
5 18 or older serve on Respondent the following documents:

6 a. Petitioner's Request for Order filed 7/17/2026

7 b. Blank Responsive Declaration (FL-320)

8 c. Tentative Ruling Instructions

9 d. Findings and Order After Hearing for the 9/17/2026 hearing date (which will be mailed to
10 Petitioner)

11 3) In advance of the next hearing date, Petitioner shall file and serve a Proof of Service
12 demonstrating compliance with the orders set forth above.

13 4) Petitioner is encouraged to seek assistance from the ACCESS Center. Information for contacting
14 the ACCESS Center can be found here: <https://sf.courts.ca.gov/access-legal-self-help-center>.

15 5) The Court will prepare the Findings and Order After Hearing.
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